

## ORDINANCE NO. 07-25

AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF DELRAY BEACH, FLORIDA, AMENDING THE LAND DEVELOPMENT REGULATIONS OF THE CITY OF DELRAY BEACH CODE OF ORDINANCES CHAPTER 4, "ZONING REGULATIONS," ARTICLE 4.4, "BASE ZONING DISTRICT," SECTION 4.4.21, "COMMUNITY FACILITIES (CF) DISTRICT," TO MODIFY THE PURPOSE AND INTENT OF THE DISTRICT AND TO ALLOW AND ADOPT REGULATIONS FOR THE ADAPTIVE REUSE OF HISTORIC PLACES OF WORSHIP AS SINGLE-FAMILY RESIDENTIAL USE AND AMENDING APPENDIX A, "DEFINITIONS," TO ADOPT A DEFINITIONS FOR "PLACE OF WORSHIP" AND "HISTORIC PLACE OF WORSHIP;" PROVIDING A CONFLICTS CLAUSE; PROVIDING A SEVERABILITY CLAUSE; AUTHORITY TO CODIFY; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City of Delray Beach ("City") Land Development Regulations ("LDR") provide authority for members of the public to request an amendment thereto; and

WHEREAS, the City received an application to amend the LDR (File No. 2025-066) to allow the adaptive reuse of historic places of worship to single-family residential within the Community Facilities (CF) zoning district submitted by Jeff Costello, AICP, on behalf of 200 SE 7th Avenue, LLC; and

WHEREAS, the City desires to support the preservation of historic places of worship by allowing the adaptive reuse of sites and structures as a residential use; and

WHEREAS, on July 2, 2025, the Historic Preservation Board voted 5 to 0 to recommend approval to the Planning and Zoning Board; and

WHEREAS, pursuant to Florida Statutes 163.3174(4)(c), the Planning and Zoning Board for the City of Delray Beach, sitting as the Local Planning Agency, reviewed the proposed text amendment to the Land Development Regulations at a public hearing on July 21, 2025, and voted 5 to 1 to recommend that the proposed text amendments be approved, finding that the request and approval thereof is consistent with the Comprehensive Plan and meets the criteria set forth in the Land Development Regulations; and

WHEREAS, the City Commission has considered Ordinance No. 07-25 and the respective findings as set forth in the Comprehensive Plan and Land Development Regulations.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COMMISSION OF THE CITY OF DELRAY BEACH, FLORIDA, AS FOLLOWS:

Section 1. The recitations set forth above are incorporated herein.

Section 2. The City Commission of the City of Delray Beach finds the Ordinance is consistent with the Comprehensive Plan.

Section 3. Chapter 4, "Zoning Regulations," Article 4.4, "Base Zoning District," Section

4.4.21, "Community Facilities (CF) District," of the Land Development Regulations of the City of Delray Beach, Florida, is hereby amended as follows:

- (A) ***Purpose and intent.*** The Community Facilities (CF) District is a special purpose zone district primarily, ~~but not exclusively,~~ intended for uses providing a community service or benefit, locations at which facilities are provided to serve public, semi-public, and private purposes. ~~Such purposes include governmental, religious, educational, health care, social service, and special facilities. It is also applied to regulated properties subjected to a transfer of development rights pursuant to Section 4.6.20. In addition, this district has provisions for the Medical Arts Overlay District.~~
- (B) ***Principal uses and structures allowed.*** The following types of use are allowed within the CF District as a permitted use:
- (1) Governmental, such as: civic centers, courts, courthouses, temporary holding facilities, fire stations, governmental offices, public health facilities, law enforcement offices and facilities, post offices, public utility facilities (e.g. lift stations), water storage tanks, water treatment plants, water wells, wastewater treatment plants, drainage facilities.
  - (2) Community, such as: civic centers, community centers, community theater, cultural facilities and auditoriums, arts and crafts centers, libraries, museums, public parking lots and garages.
  - (3) Recreation, such as: community centers, tennis centers, swimming centers.
  - (4) Services, such as: abused spouse residences, child care centers, day care centers.
  - (5) ~~Religious, such as: churches and p~~Places of ~~w~~Worship with attendant uses of day care, pre-school, educational facilities, and with other normal educational (Sunday school) and recreational facilities, and support facilities (e.g., parsonage).
  - (6) Restricted usage allowed pursuant to an ordinance enacted to sever developments rights under a Transfer of Developments (TDR). (See Section 4.6.20).
  - (7) Public educational facilities of The School District of Palm Beach County, pursuant to the regulations set forth in Section 4.3.3(HH).
  - (8) Clubs and Lodges provided that alcoholic beverages shall not be served or consumed on the property.
  - (9) Assisted Living Facilities that do not comport with the definition of "community residence" and Continuing Care Facilities subject to the requirements of the RM District except for setback and height requirements which shall be pursuant to this Section.
  - (10) Urban Agriculture pursuant to regulations set forth in Section 4.3.3(D).

- (11) Community Residence housing four to ten individuals, except as required by state law, that (1) is at least 660 linear feet from the closest existing community residence housing four or more individuals as measured from the nearest property line of the proposed community residence to the nearest property line of the existing community residence, and (2) the operator or applicant is licensed or certified by the State of Florida to operate the proposed community residence, has certification from an appropriate national accrediting agency, or has been recognized or sanctioned by Congress to operate the proposed community residence.

- (12) Single-family detached residence resulting from adaptive reuse of a Historic Place of Worship.

(C) - (E) (These subsections shall remain in full force and effect as adopted.)

- (F) ***Development standards.*** The development standards in Section 4.3.4 shall apply, except as modified in this Subsection.

- ~~(1)~~ ~~The development standards in Section 4.3.4 shall apply.~~

- (12) Historic Districts, Sites, and Buildings: In addition to the requirements of Section 4.3.4, properties located within a Historic District or Individually Designated Sites, as listed on the Local Register of Historic Places in Section 4.5.1(I), are subject to Section 4.5.1, unless otherwise modified in this Subsection.

- (2) A single-family detached residence resulting from the adaptive reuse of a Historic Place of Worship is subject to the development standards applicable to single-family detached residences within an R-1-A zoning district.

- (G) ***Supplemental district regulations.*** In addition to the supplemental district regulations in Article 4.6, the following supplemental district regulations apply in the CF District.

- (1) ***Medical Arts Overlay District.*** The following supplemental district regulations apply to the Medical Arts Overlay District, as defined in Section 4.5.18.

- (a) In addition to the uses listed in Section 4.4.21(B), the following uses are allowed as permitted uses:

- 1. Institutional uses, such as: Non-residential Licensed Service Provider Facilities; Hospitals, with or without helipads and associated laboratories; Treatment Centers; Rehabilitation Centers; Testing Facilities; and Mental Health Treatment Facilities, including residential care.

- (2) ***Historic Place of Worship.*** A single-family detached residence resulting from adaptive reuse of a Historic Place of Worship is subject to the supplemental district regulations applicable to single-family detached residences within an R-1-A zoning district.

- (H) ***Special regulations.***

- (1) The perimeter setback area, when provided, shall be a landscaped area within which no



paving shall be allowed except for driveways and walkways leading to structures on the premises. Such driveways and walkways shall be generally perpendicular to the property line.

- (2) When this zone district is adjacent to residential zoning, the perimeter landscape area should be increased to a depth of 15 feet; or, as an alternative, either a wall, decorative fencing, or hedging should be installed for aesthetic and buffer purposes.
- (3) For CF zoned properties located within the West Atlantic Avenue Redevelopment Area, a minimum of ten percent non-vehicular open space shall be provided. Notwithstanding the provisions of this section, the body acting upon a development application may require additional open areas, including but not limited to courtyards, plazas, and landscaped setbacks, in order to add interest and provide relief from the building mass. All landscape requirements for parking lots and buffering of residential properties, pursuant to Sections 4.6.5 and 4.6.16, shall apply.
- (4) For a Historic Place of Worship approved for adaptive reuse as a single-family detached residence:
  - (a) The Special Regulations required for CF zoned properties do not apply.
  - (b) A building mounted or free-standing sign that provides information about the property's historic value is required. Signage shall not exceed three square feet in area and shall not exceed six feet above grade when free-standing.

Section 4. Appendix A, "Definitions," of the Land Development Regulations of the City of Delray Beach, Florida, is hereby amended as follows:

HISTORIC PLACE OF WORSHIP. A building or structure that is individually designated as historic, located on a historically designated site, or classified as contributing within a historic district, that is or was a Place of Worship.

PLACE OF WORSHIP. A building, structure, or space used by a religious group primarily or exclusively for religious worship and related religious services. A Place of Worship may include accessory buildings, including, but not limited to, social gathering spaces, administrative offices, classrooms, and playground facilities.

Section 5. All ordinances or parts of ordinances in conflict herewith are hereby repealed.

Section 6. Should any section or provision of this ordinance or any portion thereof, any paragraph, sentence, or word be declared by a court of competent jurisdiction to be invalid, such decision shall not affect the validity of the remainder of this Ordinance.

Section 7. Specific authority is hereby given to the City Clerk to codify this Ordinance.

Section 8. This Ordinance shall become effective immediately upon its passage on second and final reading.

PASSED AND ADOPTED in regular session on second and final reading on this the 14<sup>th</sup> day of October, 2025.

ATTEST:

Alexis Givings  
Alexis Givings, City Clerk

Thomas F. Carney, Jr.  
Thomas F. Carney, Jr., Mayor

First Reading August 19, 2025

Second Reading October 14, 2025

Approved as to form and legal sufficiency:

Lynn Gelin  
Lynn Gelin, City Attorney





CITY OF DELRAY BEACH  
CITY ATTORNEY'S OFFICE  
200 NW 1<sup>ST</sup> Avenue, Delray Beach, FL 33444  
561-243-7090



## **Legal Review Form:** **Ordinances**

**To be Completed by Requesting Department:**

**Date of Submission:** 06-12-25

**Submitted by:** Rebekah Dasari

**Ordinance No:** 07-25

**Caption:**

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**Anticipated 1<sup>st</sup> Reading Date:** August 19, 2025

**Anticipated 2<sup>nd</sup> Reading Date:** October 21, 2025

**Note:** Business Impact Estimate Form must be included with ordinance.

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**To be Complete by City Attorney's Office:**



This document is approved as to form and legal sufficiency as submitted.



This document is not approved as to form and legal sufficiency for the following reason(s):

**Please resubmit with the following changes:**

William Bennett

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Attorney